

Concepts, Inc., 197 Cal.App.4th at 934.)

In this motion, there is little to none of the required materials in the briefing in the scant three-page Memorandum of Points and Authorities. Plaintiff only cites to code sections 128.5 and 128.7, and not even to specific verbiage of the code sections. There are no citations to case law let alone discussions of case law, and no evidence is presented – only an assertion that evidence in support of the motion exists. (Webster Decl. ¶ 3.) The absence of legal authority and along with little to no factual or evidentiary support for the claimed relief, is enough to deny the motion.

Lack of Safe Harbor Period

Both CCP §§ 128.5 and 128.7 have a mandatory safe harbor provision where the Party intending to file for sanctions must serve the motion to the opposing side 21 days before filing it with the Court, allowing the other party to withdraw or correct the challenged document or conduct. (See CCP §§ 128.5(f) and 128.7(c)(2).) Plaintiff failed to demonstrate strict compliance with the mandatory safe harbor provision.

Conclusion

For the reasons analyzed above, **Plaintiff's Motion for Sanctions is denied.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

10. 9:00 AM CASE NUMBER: C24-00621
CASE NAME: LING TANDIAN VS. PRINCESS CRUISE LINES, LTD.
***HEARING ON MOTION IN RE: REQUEST FOR DISMISSAL**
FILED BY: TANDIAN, LING

TENTATIVE RULING:

Based on counsel's declaration, and without opposition, the **motion is granted.**

11. 9:00 AM CASE NUMBER: C24-01034
CASE NAME: TIYANA KIRBY VS. MAUREEN MICARIO MIRADOR
HEARING ON SUMMARY MOTION
FILED BY: MICARIO MIRADOR, MAUREEN

TENTATIVE RULING:

Before the Court is Defendant Maureen Micario Mirador ("Defendant" or "Mirador")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Tiyana Kirby ("Plaintiff" or "Kirby")'s complaint for damages arising out of an auto accident. Defendant moves for summary judgment on the grounds that Plaintiff's claims are barred by a settlement and release she executed on October 26, 2023.

For the following reasons, the MSJ is **granted.**

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for

deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Brief Factual Background

The facts are essentially undisputed. This case arises out of an April 13, 2022, car accident in Contra Costa County. (UMF 1 [subject to date correction].) Defendant Maureen Mirador rear-ended Plaintiff Tiya Kirby. (UMF 2.) On October 26, 2023, Plaintiff signed a release which released any and all claims arising out of the accident in exchange for \$15,000. (UMF 3; Beary Decl. at ¶ 10, Ex. D.) Plaintiff and counsel for Plaintiff understood that "the \$15,000 was the policy limits and the only insurance available to satisfy Maureen Mirador's liability for causing the accident." (Beary Decl. at ¶ 8.)

Plaintiff subsequently learned of additional liability coverage available to Defendant Mirador. (Beary Decl. at ¶ 11.) Specifically, that Mirador had her own insurance coverage through an Auto Club policy with AAA that provided her with \$100,000 in umbrella liability coverage for any auto accident caused by her negligence. (*Id.*)

Plaintiff filed her Complaint in Contra Costa County Superior Court on April 11, 2024. Defendant Mirador filed an Answer on November 13, 2024, asserting a general denial and seven affirmative defenses, including an affirmative defense that prior to filing her initial Complaint, Plaintiff entered into a settlement and released all claims arising from the accident.

On October 1, 2025, Plaintiff sent a written Notice of Rescission of the \$15,000 Settlement and Release. (Beary Decl. at ¶ 12, Ex. E.)

Analysis

Defendant moves for summary judgment on the grounds that Plaintiff executed a settlement and release that bars her claims for damages arising out of the car accident. In opposition, Plaintiff argues that she rescinded the settlement. On reply, Defendant argues that Plaintiff cannot demonstrate

“mistake” within the meaning of Civil Code § 1689(b)(1) such that she is entitled to rescission and that she is estopped from claiming rescission through the operation of laches.

“A party may rescind a contract if [the party’s] consent was given by mistake.” (*Donovan v. RRL Corp.* (2021) 26 Cal.4th 261, 278.) “The grounds for rescission are stated in ... section 1689. One such ground exists when consent to a contract is given by ‘mistake.’ The term ‘mistake’ in ... section 1689, however, is a legal term with a legal meaning. [¶] The type of ‘mistake’ that will support rescission is defined in ... section 1577 (‘mistake of fact’) and ... section 1578 (‘mistake of law’).” (*Hedging Concepts, Inc. v. First Alliance Mortgage Co.* (1996) 41 Cal.App.4th 1410, 1421; see also *Donovan*, at p. 278.)

Civil Code section 1567 states that an “apparent consent” to a contract is not “real or free when obtained through ... mistake.” (Civ. Code § 1567(5).) A mistake “may be either of fact or law.” (Civ. Code § 1576.)

Mistake of fact is a mistake, not caused by the neglect of a legal duty on the part of the person making the mistake, and consisting in:

1. An unconscious ignorance or forgetfulness of a fact past or present, material to the contract; or,
2. Belief in the present existence of a thing material to the contract, which does not exist, or in the past existence of such a thing, which has not existed.

(Civ. Code § 1577.)

Civil Code section 1691 provides the basic procedural requirements for rescission:

[T]o effect a rescission a party to the contract must, promptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:

- (a) Give notice of rescission to the party as to whom he rescinds; and
- (b) Restore to the other party everything of value which he has received from him under the contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.

When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.

(Civ. Code § 1691.)

In the present case, Plaintiff claims she was mistaken as to the breadth of available coverage when she executed the settlement agreement.

In *Donovan*, the Supreme Court adopted the approach of section 153 of the Second Restatement of Contracts and held that a contract “may be rescinded on the ground of unilateral mistake of fact” when the party seeking rescission establishes the following: “(1) the defendant [or other party seeking rescission] made a mistake regarding a basic assumption upon which the defendant made the contract; (2) the mistake has a material effect upon the agreed exchange of performances that is adverse to the defendant; (3) the defendant does not bear the risk of the mistake; and (4) the effect

of the mistake is such that enforcement of the contract would be unconscionable.” (*Id.* at p. 282.)

In *Donovan*, the issue was whether a car dealer could validly rescind a contract formed after, due to a newspaper publisher’s error, an advertisement listed a vehicle for sale at the price of \$25,995 instead of \$37,995. (*Ibid.*) In *Donovan* the parties “vigorously dispute[d]” whether the defendant car dealer “should bear the risk of its mistake.” (*Donovan, supra*, 26 Cal.4th at p. 283.) The Supreme Court quoted section 154 of the Restatement, which states: “A party bears the risk of a mistake when [¶] (a) the risk is allocated to [the party] by agreement of the parties, or [¶] (b) [the party] is aware, at the time the contract is made, that [it] has only limited knowledge with respect to the facts to which the mistake relates but treats [the] limited knowledge as sufficient, or [¶] (c) the risk is allocated to [the party] by the court on the ground that it is reasonable in the circumstances to do so.” (Rest.2d Contracts, § 154.) The court stated that neither of the first two factors applied and considered whether it was reasonable to allocate the risk of the mistake in the advertisement to the defendant. (*Donovan*, at p. 283.)

On the facts of *Donovan*, the Supreme Court held that the car dealer validly rescinded the contract. The dealer had failed to review a proof sheet and had instead relied on the newspaper’s staff to proofread the advertisement; this “might constitute negligence,” the court reasoned, but “it does not involve a breach of defendant’s duty of good faith and fair dealing that should preclude equitable relief for mistake. In these circumstances, it would not be reasonable for this court to allocate the risk of the mistake to defendant.” (*Id.*, at p. 290.) Because enforcement of the contract with the erroneous price would have been unconscionable, the defendant dealer was entitled to rescission of the contract on the ground of unilateral mistake of fact. (*Id.* at pp. 293–294.)

Under *Donovan*, ordinary negligence does not necessarily bar relief through rescission in all circumstances. (*Id.* at p. 283.) But a unilateral mistake of fact is a bar to rescission when, under the circumstances, the risk of the mistake must be allocated to the party seeking rescission. (*Ibid.*) Such is the case here.

Here, Plaintiff’s counsel knew that Plaintiff was injured in an accident by a car owned by Sergio Morales Chico and driven with permission by Defendant Maureen Micario Mirador. (Beary Decl. at ¶ 2.) Counsel for Plaintiff took no apparent action to assess whether Defendant Mirador had any independent insurance that might apply, instead relying on the representation of non-party Chico’s insurer that the \$15,000 permissive driver coverage was the only liability insurance available to cover Plaintiff’s claims. (*Id.* at ¶ 7.) Counsel for Plaintiff later learned after instituting a claim for underinsured motorist coverage to Plaintiff’s own insurer, AAA, that Defendant Mirador had coverage through an Auto Club policy that provided \$100,000 in umbrella liability coverage for any auto accident caused by her negligence. (*Id.* at ¶ 11.) There is no indication that the insurance adjuster for Integon National Insurance Company was aware of Maureen Micario Mirador’s additional insurance.

When Plaintiff signed the release, her attorney had failed to investigate whether Mirador had additional independent insurance. Under the circumstances, the risk of this particular mistake must be allocated to Plaintiff.

The Court also notes the well-established principle that the failure to read or understand the terms of a settlement agreement or other contract is not a unilateral mistake sufficient to allow a party to rescind the agreement. (See, e.g., *Estate of Eskra* (2022) 78 Cal.App.5th 209, 225-230; *Stewart v. Preston Pipeline Inc.* (2005) 134 Cal.App.4th 1565, 1587-1589; see also *Casey v. Proctor* (1963) 59 Cal.2d 97, 104-105.) The issue here is not the failure to read or understand the release, but these cases establish that, under some (but certainly not all) circumstances, negligence can operate as a

neglect of legal duty sufficient allocate the risk of mistake to the negligent actor.

Because the Court concludes that Plaintiff's asserted rescission of the release agreement is not valid as a matter of law, it need not reach Defendant's additional argument that Plaintiff waived her right to rescission and is barred by laches in light of her nearly two-year delay in claiming rescission.

Defendant's motion for summary judgment is **granted**.

Evidentiary Objections

Defendant's objections to Plaintiff's counsel's declaration in her reply do not comply with California Rule of Court 3.1354(b) ["All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion."]. Consequently, the Court will not rule on them. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9 trial court did not abuse its discretion in refusing to rule on evidentiary objections which did not comply with Cal. Rules of Court, rule 3.1354(b)).)

12. 9:00 AM CASE NUMBER: C24-01848
CASE NAME: JOSE GONZALEZ DE LEON VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's Demurrer. The Demurrer relates to Plaintiff Jose Gonzalez De Leon's Complaint for general negligence and violation of Vehicle Code § 17001.

For the following reasons, **the Demurrer is overruled.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff's counsel after the filing of the FAC. (Gilbert Decl. at ¶¶ 3-4.) However, the parties were unable to reach an agreement and thus the motion was brought. (Gilbert Decl. at ¶¶ 3-4.)

Request for Judicial Notice

Defendant City of Richmond ("City" or "Defendant") hereby requests the Court take judicial notice of one document, Richmond Police Department Policy 309 – Vehicle Pursuits. Exhibit A is proper for judicial notice pursuant to Evidence Code sections 452, subdivisions (b), which provides that courts may take judicial notice of a public agency's regulations and official documents. (*Longshore v. County of Ventura* (1979) 25 Cal.3d 14 [finding that it is appropriate to take judicial notice of county salary ordinances].)

Judicial notice of Defendant's Exhibit A: Richmond Police Department Policy 309 – Vehicle Pursuits is granted.

Factual Background

On August 15, 2023, 12-year-old Jose Gonzalez De Leon, Plaintiff, was a passenger in a 2013 white Honda Civic traveling south on Marina Way Street in Richmond, California. (FAC ¶ 10.) As he crossed the intersection at Ohio Avenue, a 2000 white Acura TL ran a red light, striking the Honda Civic. (FAC ¶ 11.) This collision resulted from a high-speed police chase involving a Richmond Police patrol car